

2:00 PM

LINE 3

24-CIV-07727

BANK OF AMERICA N.A. VS. NESTOR S MARIANO

BANK OF AMERICA N.A.
NESTOR S MARIANO

BRIAN LANGEDYK

MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

TENTATIVE RULING:

The court GRANTS plaintiff Bank of America's motion to vacate dismissal and enter judgment under terms of stipulated settlement agreement. The court grants the request for judicial notice.

On March 4, 2025, the court (the Hon. Leland Davis III) approved the stipulation for conditional entry of judgment filed February 28, 2025 and retained jurisdiction pursuant to Code of Civil Procedure section 664.6. On March 4, 2025, the court dismissed the action without prejudice.

Plaintiff now seeks to vacate the dismissal and have judgment entered in its favor against defendant. The declaration of Donald Sherrill, counsel for plaintiff, represents that defendant defaulted on the payment arrangements under the settlement agreement with the last payment on July 18, 2025. On October 27, 2025, plaintiff served defendant with the ten-day notice as required in the settlement agreement. The balance now due, owing and unpaid to plaintiff from defendant is the principal sum of \$40,916.96 plus court costs in the sum of \$1,043.61 for a total judgment of \$41,960.57.

Based on the foregoing evidence the court sets aside and vacates the dismissal and enter judgment in favor of Plaintiff and against Defendant in the principal sum of \$40,916.96 plus court costs in the sum of \$1,043.61 for a total judgment of \$41,960.57.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order and judgment in two separate documents consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 4

24-CLJ-07961

AMERICAN EXPRESS NATIONAL BANK VS. LISA MILLER

AMERICAN EXPRESS NATIONAL BANK

LISA MILLER

KATIE ZWARG

PRO SE

PETITION TO CONFIRM CONTRACTUAL ARBITRATION AWARD

CONTINUED FROM 6/2/2026

TENTATIVE RULING:

The court DENIES without prejudice plaintiff's unopposed petition to confirm arbitration award.

As stated in the court's June 1, 2026 tentative ruling, which was adopted at the June 2, 2026 hearing and put in the minutes: "Plaintiff has not filed any proof of service establishing that Defendant was served with plaintiff's Petition. Plaintiff shall serve defendant by June 9, 2026 and file a proof of service no later than July 14, 2026."

There still is no proof of service in the court file. Thus, the court must deny the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
